

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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JUSTIN SAPINI,

Plaintiff,

Index No.: 160000/2024

-against -

ANTHONY F. FERRARA and METRO-NORTH
COMMUTER RAILROAD,

Defendants.

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**RESPONSE TO
DEMAND OF
PLAINTIFF**

PLEASE TAKE NOTICE that the defendants, ANTHONY F. FERRARA and METRO-NORTH COMMUTER RAILROAD, by their attorneys MILBER MAKRIS PLOUSADIS & SEIDEN, LLP, in response to the initial demand of plaintiff, dated January 2, 2025, hereby respond as follows:

ACCIDENT/INCIDENT REPORTS:

Annexed hereto is the Metro-North Railroad Incident Report.

PHOTOGRAPHS:

Annexed hereto are five (5) photographs of the vehicles involved in the subject accident.

WITNESS INFORMATION:

Kyle Pullano, Metro-North Employee, was a passenger in responding defendants' vehicle.

INSURANCE COVERAGE:

Insurance coverage information to be provided under separate cover.

PLEASE TAKE FURTHER NOTICE, that the responding defendants reserve the right to amend and/or supplement the responses contained herein should new or additional discovery

become available prior to the trial of this action, pursuant to CPLR.

Dated: Woodbury, New York
September 30, 2025

Yours, etc.

MILBER MAKRIS PLOUSADIS
& SEIDEN, LLP

A handwritten signature in black ink, appearing to read "Stephen F. Zaklukiewicz", followed by a horizontal line.

By: STEPHEN F. ZAKLUKIEWICZ, ESQ.
Attorneys for Defendants
ANTHONY F. FERRARA and METRO-
NORTH COMMUTER RAILROAD
1000 Woodbury Road, Suite 402
Woodbury, New York 11797
(516) 712-4000
File No.: 1805CS-28142

TO:

HOWARD B. STOLZENBERG
STOLZENBERG CORTELLI, LLP
Attorneys for Plaintiff
JUSTIN SAPINI
305 Old Tarrytown Road
White Plains, New York 10603
(914) 361-4888

Initial Report of Incident (IR-1) rev 1/2023


Metro-North Railroad
Office of System Safety

Incident Type (Check One Only)

- ☐ Employee Injury ☐ Employee Illness ☐ Trespasser Struck by Train ☐ Assault
☐ Non-Employee Injury ☐ Non-Employee Illness ☐ Contractor ☒ Motor Vehicle Accident
☐ Near Miss ☐ Property Damage ☐ Other: _____

Injured/Involved Person

Name: Anthony Ferrara	Title: Assistant Foreman	Department: MofW C&S	Employee No.: 115290
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Complete only for Non-Employee Injury/Illness

Address:	Phone No.:	Did person already or plan to take a train? ☐ Yes ☐ No
	DOB:	If so, which Railroad? ☐ MNR ☐ ATK ☐ LIRR(GCM) ☐ OTHER

Location of Incident (Check One Only)

- ☐ GCT ☐ Hudson Line ☐ Harlem Line ☒ New Haven Line ☐ New Canaan Branch ☐ Danbury Branch
☐ Waterbury Branch ☐ West of Hudson

Specific Location of Incident (Please be as descriptive as possible):

I 95 Southbound Exit# 16 ramp

Employee HQ Location: Bridgeport ☒ On-Duty ☐ Off-Duty Closest Station/Yard to Incident: New Rochelle

District (Check One Only)

- ☐ Grand Central Terminal ☐ Harmon ☐ Brewster ☐ North White Plains ☒ New Haven ☐ Stamford ☐ WOH

Incident Description (Please provide as much information as available at the time of submission.)

Mr. Ferrara was heading to the jobsite, while he was getting off the Exit#16 in New Rochelle. Mr. Ferrara was side swiped by another vehicle on the passenger side. New Rochelle reported to the site of the accident.

☐ No injury reported at this time

Date/Time of Incident

Date: 4/23/2023

Time: 08:30 ☒ AM ☐ PM

Medical Treatment (Check One Only)

- ☒ Refused Medical Attention
☐ First Aid Only
☐ Sent to OHS for Evaluation
☐ Hospital/Medical Facility

PLEASE ENSURE THAT THE POST INCIDENT INSTRUCTIONS FORM IS COMPLETED

Date/Time of Notification

Date: 4/23/2023

Time: 08:33 ☒ AM ☐ PM

Name of Medical Facility and Means of Transport

☐ Ambulance ☒ Company Vehicle ☐ Personal Vehicle

Tox Tested?

- ☐ Reasonable Cause
☐ Reasonable Suspicion
☒ N/A

Person Notified:

Name: Marcio Correia

Title: Assistant Supervisor

Department: MoW C&S

Employee No.: 114749

Phone No. (include area code): (914) 557-0559

This form must be submitted along with the Post Incident Instructions AS SOON AS POSSIBLE, but no later than end of shift, after the occurrence.

☐ Check here for revised IR-1EMAIL: MNRIR1@mnrr.org



**Metro-North
Railroad**

5/15/2023

Accident Report Cover Sheet

**Metro North Railroad
Automotive Department
Croton Point Av, Building 8
Croton on Hudson, NY 10520**

Automobile Policy # HC2ECAP477M0330TCT19-Travelers Indemnity- Code: 354 State of NY

Distribution:

Claims Service Bureau
21 Hempstead Ave.
Lynbrook, New York 11563
Attn: Julie Barella

Metro North Claims Mgmnt.
420 Lexington Ave. 11th Floor
New York, New York 10170
Attn: Ellen Salavarria

MTA Risk/Insurance Mgmnt.
2 Broadway 21st Floor
New York, New York 10004
Attn: Utilda Ramsay

Comm. & Signals Dept.
420 Lexington Ave. 12th Floor
New York, New York 10170
J. Deptulski, Attn: T. Jeffers

Danella Rental Systems
2290 Butler Pike
Plymouth Meeting PA 19462

A. Accident Date: 4/23/2023	B. Dept name: Comm. & Signals Dept.	C. Unit Number E2858D	D. License Plate: ZMP3277	E. File Number M23-042
G. MN Driver Last Name: Ferrara		First: Anthony	H. Employee #: 115290	I. M/C: 57304
J. Inci/Type: A01 Our unit going straight				
K. Vehicle Type/ GVW: 6M 4WD UTIL 009900	L. Vehicle Use 1. Normal job operation 2. Loading/Unloading/ Material handling. 3. Stopped in traffic 4. Towing (Incl. trailer) 5. Special use-other 6. Parked	M. Site of Incident 1. Roadway 2. Parking Area 3. Agency Property	N. MNR Vehicle in Motion? Yes / No O. Major Accident? Inj. fat., damage over \$1,000 Yes / No	
P. Circle initial point of Contact of Agency Vehicle. (Enter "0" if NO Damage) Q. Circle initial point of Contact on other Vehicle. (Enter "0" if No Damage)		Indicate Initial Impact Damage Agency Vehicle Indicate Initial Impact Damage Other Vehicle		
R. Other Party Last Name:		S. Accident Loc/Town/St: Cedar St & Garden St, New Rochelle NY		

Metro-North Automotive Dept.

(914) 827-1068

METRO NORTH COMMUTER RAILROAD CO.

POLICY #

MOTOR VEHICLE ACCIDENT REPORT

PRINTED IN U.S.A.

DATE

4/23/23

NOTE: Accidents involving personal injuries should be reported immediately by telephone to the Metro North Claim Department.

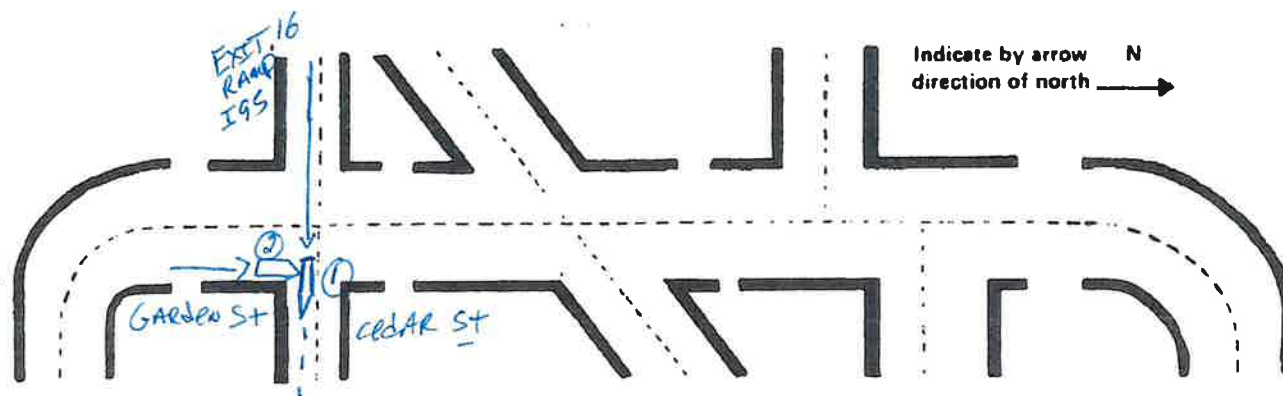
212 340 2183

OPERATOR'S VEHICLE	DATE OF ACCIDENT 4/23/23		TIME OF ACCIDENT ☐ DAWN ☒ DAYLIGHT ☐ DUSK ☐ DARK		HOUR OF ACCIDENT 0825	
	UNIT NO. E2858D		TRAILER NO. N/A		OWNED BY DANIELA	
	NAME OF DRIVER (LAST, FIRST, MIDDLE, INITIAL) Ferrara, Anthony		AGE 46		EMPLOYEE NO. 115290	
	HOME ADDRESS 12 DAIRY Farm DR		CITY Brookfield		VEHICLE LICENSE NO. & STATE PA ZMP-3277	
OTHER VEHICLE (IF INVOLVED)	DEPARTMENT SIGNAL		OCCUPATION Asst Foreman		WORK LOCATION ADDRESS BPT	
	MAKE OF VEHICLE Chevy		YEAR AND TYPE OF VEHICLE 2019 2500MD		LIST PARTS DAMAGED OR POINT OF CONTACT Rear Passenger Door	
	ESTIMATED DAMAGE		POLICE NOTIFIED ☒ YES ☐ NO		POLICE AFFILIATION ☐ STATE ☒ LOCAL	
	CITY STREET OR HIGHWAY NUMBER (ACCIDENT LOCATION) Intersection Cedar St + Garden St		CITY New Rochelle		COUNTY STATE NY	
PERSONS INJURED	YEAR 2019		MAKE VW		MODEL GLI	
	COLOR White		LICENSE PLATE NO. AND STATE NY/KGT-5983 OR NY/KYR-1393		EST. DAMAGE None	
	NAME OF DRIVER		AGE		ADDRESS	
	NAME OF OWNER		ADDRESS		PHONE NO.	
WITNESSES	COMPANY IN WHICH LIABILITY INSURANCE CARRIED		POLICY NO.		ADDRESS	
	NAMES OF PASSENGERS		AGE		ADDRESS	
WITNESSES	NAME		ADDRESS		AGE	
	None					
WITNESSES	NAME(S) Kyle Pullano (MNR Employee)		ADDRESS		PHONE NO. [REDACTED]	

WEATHER (CHECK ONE) ☐ CLEAR ☒ RAINING ☐ SNOWING ☐ FOGGY		ROAD (CHECK ONE) ☐ DRY ☐ ICE ☐ SNOW ☒ WET		ACCIDENT (OUR VEHICLE) (CHECK ONE) ☐ HEAD ON ☒ INTERSECTION ☐ REAR END WE HIT ☐ SIDESWIPE ☐ PARKED OR STOPPED ☐ REAR END ☐ OTHER	
COLLISION WITH (CHECK ONE) ☒ OTHER VEHICLE ☐ TRAIN ☐ OTHER ☐ FIXED OBJECT ☐ PEDESTRIAN ☐ BICYCLE ☐ ANIMAL					
ACCIDENT LOCATION (CHECK ONE) ☒ ON OR ALONG STREET OR HIGHWAY ☐ ON COMPANY PROPERTY ☐ OTHER					
NON COLLISION ACCIDENT (CHECK ONE) ☐ GLASS BREAKAGE ☐ FIRE ☐ THEFT ☐ VANDALISM ☐ OTHER (SPECIFY)					

DESCRIBE ACCIDENT IN DETAIL While traveling EASTWARD From the Right Lane of the I95 EXIT 16 RAMP to the Right Lane of CEDAR ST with A green Light A pedestrian Motorist TRAVELING NORTHWARD ON GARDEN ST. went through the Red Light And HIT the passenger side of truck.

Complete the Following Diagram Showing Direction and Positions of Automobiles Involved, Designating Clearly Point of Contact.



KEY TO BE USED.

- (1) Solid line to show path of vehicle before accident
 (2) Dotted line to show path of vehicle after accident
 (3) Number each vehicle and show direction of travel
 (4) Motorcycle ○ ○
 (5) Pedestrian ●
 (6) Railroad -| -| -| -| -| -|



Our vehicle is always No. 1.

DRIVER'S SIGNATURE Anthony Geronzi Title ASST Foreman Date 4/23/23

DRIVER HAS COMPLETED HIS PORTION OF THIS REPORT?

☒ YES ☐ NO (EXPLAIN)

CONDITION OF DRIVER AT TIME OF ACCIDENT

☐ SICK ☒ NORMAL ☐ SLEEPY ☐ OTHER (IF OTHER PLEASE EXPLAIN)

CONDITION OF VEHICLE AFTER ACCIDENT

☒ USABLE ☐ OUT OF SERVICE

USE OF VEHICLE

☒ ON DUTY ☐ OFF DUTY

SUPERVISOR'S SIGNATURE _____ TITLE _____ DATE _____



